

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

ONE BANANA NORTH AMERICA CORP., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,
Respondents.

DOCKET NO. 22-03

Served: October 17, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

SECOND REVISED SCHEDULING ORDER

On October 14, 2022, Complainant One Banana North America Corp (“One Banana”) and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC (collectively “Hapag”) filed a joint status report and proposed schedule. The parties state that they have been unable to reach a final agreement to settle this proceeding and therefore propose a second revised schedule. The schedule was previously extended to permit review of approximately 20,000 pages of documents and due to delays caused by a cyber-attack and the proceeding was stayed last month based on a representation that the parties had reached a settlement in principle.

The revised deadlines proposed by the parties are reasonable and conclude briefing by the Commission’s deadline for an initial decision in this proceeding. The parties are expected to work diligently to meet these deadlines as additional extensions may not be permitted. Accordingly, it is hereby **ORDERED** that the scheduling order be revised as follows:

October 17, 2022	Completion of productions of documents and ESI in response to initial RFPs.
October 17, 2022	Exchange of privilege logs.
November 15, 2022	Complete depositions of fact witnesses.
November 20, 2022	Disclosure of initial expert reports.
November 22, 2022	Last day to serve discovery requests.
November 28, 2022	Disclosure of rebuttal expert reports.
December 5, 2022	Complete expert depositions.
December 5, 2022	Close of all discovery.
December 20, 2022	Complainant’s brief, proposed findings of fact, and appendix.

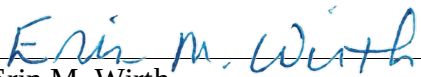
January 16, 2023 Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.

January 23, 2023 Complainant's reply brief and responses to proposed findings of fact.

If the parties resume settlement discussions, those discussions will not justify an additional extension of time and may occur while discovery and briefing are completed. Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Accordingly, it is hereby ordered that the parties' joint request for a revised schedule be **GRANTED**.


Erin M. Wirth
Chief Administrative Law Judge